

was a substantial factor in causing the accident of plaintiffs' daughter. The court finds evidence in support for its conclusions in Plaintiffs' Response to Defendant's Separate Statement of Undisputed Material Facts, Plaintiffs' Additional Material Fact Nos. 2, 3, 4, 5, 6, 8, 9, 10, 12, 14, 16, 17, 18, 23, 24, 25, 26, 28, 29, 44, and 45, and the evidence cited therein.

As to defendant's request for judicial notice, the court takes judicial notice of the complaint, the court document regarding the conviction of defendant Pina Martinez, and the traffic collision report, although the court does not take judicial notice of the statements contained in the traffic collision report as they are hearsay. The court also does not take judicial notice of the alleged fact that the accident was not reasonably foreseeable; this is a question for the jury.

SOLANO COUNTY v. BORCHARD, ET AL.
Case No. CU25-01336

Motion for Prejudgment Possession

TENTATIVE RULING

Plaintiff's unopposed motion for prejudgment possession is granted. Plaintiff has demonstrated its right to take the property by eminent domain, having adopted a resolution of necessity that conclusively establishes the conditions precedent to exercise the power. (Code Civ. Proc. § 1245.250(a).) Plaintiff has deposited the probable amount of compensation supported by the appraisal of a qualified expert. (Code Civ. Proc. § 1255.010.)

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